

Skewed Scheme of Things

MARRIAGES WERE SEEN TO BE MONOGAMOUS IN HINDU LAW BUT ADULTERY WAS ACCEPTED. THIS FLEXIBILITY HOWEVER WAS NOT ALLOWED TO WOMEN.

Matrimonial infidelity or adultery used to be the primary ground for divorce. But it is gradually being replaced with cruelty because of the wide definition it has been awarded in recent times. Also because adultery is difficult to prove. Direct evidence of adultery is rare. The law also requires that the adulterer/adulteress be added as a co-respondent in a petition for divorce making the procedure difficult. It is simpler to use cruelty even while the allegation is of adultery, since every act of adultery would constitute mental cruelty to the spouse.

The reasons for using adultery as the primary ground for divorce are inherited from the English matrimonial law. Historically, Christian marriages were monogamous and the strict rule of matrimonial fidelity applied both to men and women equally, unlike Hindu or Muslim marriages where only women were governed by the norm of sexual fidelity. When English marriages were transformed to dissoluble contract in 1857, adultery, which is a violation of the vow of matrimonial fidelity, was reason enough for the dissolution of marriage. (Later other grounds such as cruelty, desertion, insanity and conversion were added.) English law has now reached the stage of "no

fault divorce" where divorce can be obtained by pleading that the marriage has "irretrievably broken down".

Rather curiously, when the polygamous Hindu marriages, which were deemed indissoluble, were rendered contractual and monogamous in 1955, adultery was made a primary ground for divorce. Cruelty and desertion were in-

Adultery is also condoned by wives for whom marriage is not just a sexual contract but an economic arrangement and a social transaction. Women seldom approach the courts for divorce on the sole ground of husband's adultery. There is a tendency to view it as "occasional lapses from virtue". Women would demand an assurance that the

divorce she was aghast. "Why should I? I have two grown daughters. Divorce will be a stigma. I will never set him free. Even if he does not come back to me, let him suffer," she said. According to her, divorce would only help her husband to make his affair official.

But adultery by wives is viewed far more seriously by husbands. In fact, it is very common to allege infidelity and immoral conduct on the part of the wife. The allegations of immorality are used not only to obtain a divorce but also to deny women maintenance or as a defence against a petition filed by the wife on the plea of cruelty or desertion. I have not come across any pleading on behalf of a husband, where the wife's character has not been made into a



23% OF WORKING WOMEN ADMIT TO HAVING AFFAIRS WITH THEIR COLLEAGUES AT WORK

cluded later in 1976. Since polygamous marriages are accepted under the Muslim law, the grounds for obtaining divorce on the basis of adultery under the Dissolution of Muslim Marriages Act are worded slightly differently as "associating with women of ill repute".

In Hindu law, although marriages were rendered monogamous, on the ground level, adultery and bigamy were still accepted.

husband terminate the adulterous relationship rather than approach the courts for divorce as that would enable the husband to legitimise his illegitimate affair. Women feel they have far more to lose.

Take Meena, who has two grown daughters. She found out that her husband was having an affair with one of his colleagues. She came to me regarding her options. When I suggested

contentious issue. This is done mainly as a means of character assassination and to humiliate women during court proceedings. This ground has been overused to such an extent that courts today are wary of these allegations and take them with a pinch of salt.

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